

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alondra Payan	Team: Squad #05	CCRB Case #: 202205454	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) NA, __/__/____	Location of Incident: 100th Precinct stationhouse	18 Mo. SOL 7/1/1901	Precinct: 100		
Date/Time CV Reported Sun, 08/07/2022 7:57 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/19/2022 9:19 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. PO Brian Lapp	01940	949198	103 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. PO Anthony Scavetta	05555	944990	108 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . PO Brian Lapp	Abuse: Police Officer Brian Lapp refused to provide his shield number to § 87(2)(b)	A . Complainant Uncooperative			

Truncation Case Summary

Search IAs: 0

Contact complainant/victim IAs: 11

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/23/2022

Remarks Call #1: called § 87(2)(b) at § 87(2)(b). The call went to voice mail. The undersigned left a voice mail with a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/25/2022

Remarks Delayed IA: on 8/24, § 87(2)(b) left the undersigned a voice message.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/25/2022

Remarks Call #2: called § 87(2)(b) at § 87(2)(b). The call went to voice mail. The undersigned left a voice mail with a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/31/2022

Remarks § 87(2)(b) left the undersigned a voice message with a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/31/2022

Remarks Call #3: called § 87(2)(b) at § 87(2)(b). The call went to voice mail. The undersigned left a voice mail with a call back number.

Contact: Comp/Victim § 87(2)(b)

Created by: Alondra Payan on 08/31/2022

Remarks § 87(2)(b) returned the undersigned's call. § 87(2)(b) became upset with the undersigned and accused her of being disrespectful towards people with disabilities. Inv. Payan provided § 87(2)(b) with IM Giansante's contact information because § 87(2)(b) wanted to make a complaint about Inv. Payan. Towards the end of the call § 87(2)(b) told the undersigned, "I have a better command o...

Contact: Comp/Victim § 87(2)(b)

Created by: Daniel Giansante on 09/06/2022

Remarks **DELAYED IA** --On 8/31/22, § 87(2)(b) left a voicemail for IM Giansante. She also sent an email asking to call her at § 87(2)(b). --She said the following in her voicemail: "I had the displeasure of speaking with your detective Bayan or whatever she does there. I only spoke with her for about maybe six minutes. I'm an individual with multiple disabilities including a severe hearing d...

Contact: Comp/Victim § 87(2)(b)

Created by: Daniel Giansante on 09/07/2022

Remarks --Called § 87(2)(b) at § 87(2)(b). No answer, left a voicemail saying that I would also email her.

Contact: Comp/Victim § 87(2)(b)

Created by: Daniel Giansante on 09/08/2022

Remarks § 87(2)(b) called and began speaking about her complaint, but then the line went silent for an extended period and there was no response to my statements.

Contact: Comp/Victim § 87(2)(b)

Created by: Daniel Giansante on 09/08/2022

Remarks --I called § 87(2)(b) back immediately and she did not answer. I left a voicemail explaining what happened and told her I'd be at my desk in the near future if she wanted to call back.

Contact: Comp/Victim § 87(2)(b)

Created by: Daniel Giansante on 09/13/2022

Remarks § 87(2)(b) called back and we had a extensive conversation about numerous old and new complaints. --I went through the various elements listed in this particular IAB referral log, and she confirmed that

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she complained about PO Lapp refusing to provide his shield number during an in-person conversation at the 100PCT stationhouse. However, she ultimately said that she did not want to pursue a ...

Letters/Correspondence IAs: 0

Document List:

Civilian Interview Scheduled IAs: 0

Civilian Interview Missed IAs: 0

Truncation Report Remarks:

On August 7, 2022, § 87(2)(b) filed this complaint by phone with IAB, generating original log number 22-18617. The CCRB received the complaint on August 19, 2022.

The investigation did not obtain video footage.

On September 13, 2022, § 87(2)(b) discussed the complaint by phone with the undersigned, during a conversation which touched upon numerous police incidents. With regard to this case, § 87(2)(b) decided that she did not want to pursue a complaint against the subject officer because he had been helpful to her more recently. It is therefore recommended that this case be closed as **complainant uncooperative**.

Squad No.: 5

Investigator:			
	Signature	Print Title & Name	Date
Squad Leader:	<i>Daniel Giansante</i>	IM Daniel Giansante	September 13, 2022
	Signature	Print Title & Name	Date
Reviewer:			
	Signature	Print Title & Name	Date